

ओ. सी. एल. इण्डिया लिमि. राजगांगपुर
मोगिसा द्वारा ग्राम चिराईपानी में स्थित
चिराईपानी ब्यार्जिनाइट माइंस तक पूर्व से
निर्भित पट्टय मार्ग के उत्थन हेतु ।

AREA:- 0.820 HA.

Encl:- 1. 1st stage approval letter
07/12/2016
2. 2nd stage approval letter
30/05/2017



कार्यालय प्रधान मुख्य वन संरक्षक, छत्तीसगढ़, अरण्य भवन, मेडिकल कॉलेज रोड़, रायपुर
(अपर प्रधान मुख्य वन संरक्षक - भू-प्रबंध)

दूरभाष: 0721 - 2552233

ई - मेल: apccf-lm.cg@gov.in

क्र./भू-प्रबंध/विविध/115-410/ 3014

रायपुर, दिनांक 15/12/2016

प्रति,

वन मंडलाधिकारी
रायगढ़ वन मंडल, रायगढ़
छत्तीसगढ़

विषय: - Diversion of 0.82 ha. Reserve Forest land for construction of approach road from NH 200 to operating Chiraipani Quartzite mines in favour of M/s OCL India Ltd. in village Chiraipani of Raigarh District, Chhattisgarh.
पंजीयन क्रमांक / 2014 / 015

संदर्भ:- 1. भारत सरकार, पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय, क्षेत्रीय कार्यालय, नागपुर का पत्र क्रमांक F.No. FC-I/CH-13 / 2015-NGP/1133 दिनांक 07.12.2016
2. कार्यालयीन पत्र क्रमांक/भू-प्रबंध/विविध/115-410/2548 दिनांक 19.10.2016

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विषयांतर्गत संदर्भित पत्रों का अवलोकन करें।

1. संदर्भित पत्र द्वारा भारत सरकार, पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय, क्षेत्रीय कार्यालय, नागपुर द्वारा प्रथम चरण स्वीकृति दिनांक 07.12.2016 को जारी किया गया है।
 2. भारत सरकार के संदर्भित पत्र द्वारा जारी प्रथम चरण स्वीकृति के अधिरोपित शर्तों का बिन्दुवार पालन प्रतिवेदन मय कैम्पा पत्रक तत्काल प्रेषित करें। डिमाण्ड नोट जारी करे अप्रैल 2016 की देय दर से।
 3. प्रत्याशा मूल्य की राशि नवीन निर्धारित प्रपत्र में गणना कर प्रेषित करें।
 4. समस्त राशि ई-पेमेंट के माध्यम से वेब पोर्टल द्वारा कैम्पा खाता में जमा करावें।
 5. खदान कार्यरत रहेगी।
- अपूर्ण प्रतिवेदन मान्य नहीं किया जावेगा।

संलग्न :-

उपरोक्तानुसार

15-12-16

(वन संरक्षक)

वास्ते अ.प्र.मु.व.स (भू-प्रबंध / वं. स. अ)
छत्तीसगढ़

रायपुर, दिनांक 15/12/2016

प्रतिलिपि सूचनार्थ एवं आवश्यक कार्यवाही हेतु:

1. मुख्य वन संरक्षक, बिलासपुर वृत्त, बिलासपुर, छत्तीसगढ़।
2. डायरेक्टर, मेसर्स ओ.सी.एल इण्डिया लि., राजगांगपुर, जिला सुन्दरगढ़, ओडिशा - 770017

संलग्न :- उपरोक्तानुसार

(वन संरक्षक)

वास्ते अ.प्र.मु.व.स (भू-प्रबंध / वं. स. अ)
छत्तीसगढ़



भारत सरकार
GOVERNMENT OF INDIA
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय
MINISTRY OF ENVIRONMENT, FORESTS & CLIMATE
CHANGE

Regional Office (WCZ)
Ground Floor, East Wing
New Secretariat Building
Civil Lines, Nagpur - 440001
apccfcentral-ngp-mef@gov.in

F. No. FC-I/CH-13/2015-NGP/1133

Dated: 7th December, 2016

To

The Principal Secretary (Forests),
Government of Chhattisgarh,
Forest Department,
Mantralaya, Mahanadi Bhavan,
New Raipur (CG).

Sub: Diversion of 0.82 ha of forest land in favour of M/s OCL India Limited for improvement and utilization of existing approach road to Chhriapani Quartzite mining lease in Raigarh Forest Division of Raigarh District in the State of Chhattisgarh - regarding.

Sir,

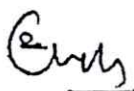
I am directed to refer to the State Government of Chhattisgarh's letter no. F-5-22/2015/10-2 dated 11.08.2015 on the above subject seeking prior approval of the Central Government, in accordance with Section-2 of the Forest (Conservation) Act, 1980 and letter no. 5-22/2015/10-2 dated 2.11.2016 forwarding additional information as desired by the Regional Office vide its letters of even number dated 24.02.2016 and to say that the said proposal has been examined by the Regional Office of the MoEF&CC at Nagpur in light of relevant provisions of the Forest (Conservation) Act, 1980.

After careful examination of the proposal of the State Government and on the basis of the recommendation of the State Government, the Central Government hereby accords 'in-principle' under Section -2 of the Forest (Conservation) Act, 1980 for diversion of 0.82 ha of forest land in favour of M/s OCL India Limited for improvement and utilization of existing approach road to Chhriapani Quartzite mining lease in Raigarh Forest Division of Raigarh District in the State of Chhattisgarh subject to fulfilment of the following conditions:

- i. Legal status of the diverted forest land shall remain unchanged;
- ii. Compensatory afforestation, over degraded forest land, double in extent to the forest land being diverted, shall be raised and maintained by the State Forest Department at the cost of the User Agency;
- iii. The penal compensatory afforestation over degraded forest land, double in extent to the forest land used in violation of the Forest (Conservation) Act, 1980, shall be raised and maintained by the State Forest Department at the cost of the User Agency;
- iv. ✓ The details of the degraded forest land to be identified for raising Penal Compensatory Afforestation viz. land suitability certificate, afforestation scheme, Differential GPS map along with soft copies of its KML/Shape files, etc. should be submitted along with the compliance of the Stage-I approval;
- v. ✓ The User Agency shall transfer the cost of raising and maintaining the compensatory afforestation and penal compensatory afforestation, at the current wage rate, to the State Forest Department. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years;
- vi. ✓ The State Government shall charge the Net Present Value (NPV) of the forest land being diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme

Court of India dated 28.03.2008, 24.04.2008 and 09.05.2008 in Writ Petition (Civil) No. 202/1995 and the guidelines issued by this Ministry vide its letter No. 5-3/2007-FC dated 05.02.2009 in this regard;

- vii. At the time of payment of the Net Present Value (NPV) at the then prevailing rate, the User Agency shall furnish an undertaking to pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India;
- viii. All the funds received from the user agency under the project, except the funds realized for regeneration/ demarcation of safety zone, shall be transferred to Ad-hoc CAMPA, through e-challan, in the Savings Bank Account pertaining to the State concerned;
- ix. The State Government shall ensure that use of the road by the local villagers is not constrained in any way by the proposed diversion in favour of the User Agency. An undertaking to this effect shall be obtained by the User Agency;
- x. The boundary of the diverted forest land, shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- xi. The user agency shall arrange to raise strip plantation on either side of the road and central verge at project cost, as per IRC specification, with maintenance of 7-10 years.
- xii. Wherever possible and technically feasible, the User Agency shall undertake afforestation measures along the roads within the area diverted under this approval, in consultation with the State Forest Department at the project cost.
- xiii. The reclamation of quarry should be done under the supervision of the State Forest Department. The quarry shall be reclaimed and afforested completely before the project is closed.
- xiv. Overburden shall not be dumped outside the width of the road. The muck generated in the earth cuttings will be disposed of at the designated dumping sites and in no case the muck/debris will be allowed to roll down the hill slopes.
- xv. The user agency will provide retaining walls, breast walls and drainage as per requirement to make the slope stable.
- xvi. The User agency will undertake comprehensive soil conservation measures at the project cost in consultation with the State Forest Department, if required and scheme on the same shall be submitted to the Regional Office along with the compliance report;
- xvii. The designing of culverts/bridges, if any, over the natural streams/rivers/canals should be done in such a manner that it does not hamper the natural course of water, does not give rise to water-logging, and also does not hamper movement of wild animals.
- xviii. No labour camp shall be established on the forest land;
- xix. The User Agency shall provide fuels preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- xx. The forest land shall not be used for any purpose other than that specified in the proposal;
- xxi. The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
- xxii. The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
- xxiii. No damage to the flora and fauna of the adjoining area shall be caused;
- xxiv. No felling of trees shall be undertaken in the area being diverted.
- xxv. The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests



artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;

- xxvi. The State Government shall ensure that rights have been settled, in accordance with the provisions of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006.
- xxvii. The user agency shall submit the six monthly self-compliance report in respect of the above conditions as on 31st July and 31st January to the State Government and to the concerned Regional Office of the Ministry regularly.
- xxviii. The State shall also monitor the compliance of conditions of the Stage-I approval and an annual report on the same may be submitted to this office as on 31st December every year.
- xxix. Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife; and
- xxx. The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project.
- xxxi. Grant of working permission to the extant proposal may be considered by the State Government in accordance with the provisions as contained in the MoEF&CC's Guidelines dated 7.05.2015.

After receipt of a report on satisfactory compliance from the State Government in respect of conditions no. (iv) to (vi), (viii), (xvi) and undertakings in respect of all other conditions, duly authenticated by the competent authority in the State Government, the proposal will be considered for grant of Stage-II approval under the Forest (Conservation) Act, 1980.

Yours faithfully,

—s d—

(Charan Jeet Singh)
Scientist 'C'

Copy to:

- 1. The PCCF, Government of Chhattisgarh, Raipur
- 2. The Nodal Officer FCA, O/o of the PCCF, Government of Chhattisgarh, Raipur.
- 3. The Director, ROHQ, MoEF&CC, Indira Paryavaran Bhawan, Aliganj, Jorbagh Road, New Delhi
- 4. User Agency.
- 5. Guard File.



(Charan Jeet Singh)
Scientist 'C'



भारत सरकार
GOVERNMENT OF INDIA
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय
MINISTRY OF ENVIRONMENT, FORESTS & CLIMATE
CHANGE

Regional Office (WCZ)
Ground Floor, East Wing
New Secretariat Building
Civil Lines, Nagpur - 440001
apccfcentral-ngp-mef@gov.in

F. No. FC-1/CH-13/2015-NGP/1847

Dated: 30th May, 2017

To

The Principal Secretary (Forests),
Government of Chhattisgarh,
Forest Department,
Mantralaya, Mahanadi Bhavan,
New Raipur (CG).



Sub: Diversion of 0.82 ha of forest land in favour of M/s OCL India Limited for improvement and utilization of existing approach road to Chiriapani Quartzite mining lease in Raigarh Forest Division of Raigarh District in the State of Chhattisgarh - regarding.

Sir,

I am directed to refer to the State Government of Chhattisgarh's letter no. F-5-22/2015/10-2 dated 11.08.2015 on the above subject seeking prior approval of the Central Government, in accordance with Section-2 of the Forest (Conservation) Act, 1980 and letter no. 5-22/2015/10-2 dated 2.11.2016 forwarding additional information as desired by the Regional Office vide its letters of even number dated 24.02.2016. After careful examination of the proposal of the State Government 'in-principle' approval was accorded vide this Ministry's letter of even number dated 7.12.2016 subject to fulfilment to certain conditions prescribed therein. The Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh submitted a report on the compliance of conditions stipulated in the Stage-I approval and requested to consider the proposal for grant of final approval under the Forest (Conservation) Act, 1980.

In this connection, I am further directed to inform that based on the compliance report submitted by the Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh, vide his letter no. Bhu-Prabandh/Vividh/115-410/897 dated 30.03.2017, the Central Government hereby accords final approval under Section - 2 of the Forest (Conservation) Act, 1980 for diversion of 0.82 ha of forest land in favour of M/s OCL India Limited for improvement and utilization of existing approach road to Chiriapani Quartzite mining lease in Raigarh Forest Division of Raigarh District in the State of Chhattisgarh subject to following conditions:

- Legal status of the diverted forest land shall remain unchanged;
- Compensatory afforestation, over degraded forest land, double in extent to the forest land being diverted, shall be raised and maintained by the State Forest Department from the funds already provided by the User Agency;
- The penal compensatory afforestation over degraded forest land, double in extent to the forest land used in violation of the Forest (Conservation) Act, 1980, shall be raised and maintained by the State Forest Department from the funds already provided by the User Agency;
- The compensatory afforestation and penal compensatory afforestation schemes proposed to be implemented shall include appropriate provisions for the protection of the compensatory afforestation plantation and anticipated cost increase for works scheduled for subsequent years;

APCCF (I/M)

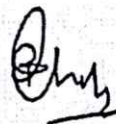
PCCF
रायपुर
7/6

अवर प्रधान मुख्य वन संरक्षक (मू-प्रबंध)
छत्तीसगढ़, रायपुर

08/06/17

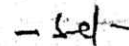
[Signature]

- v. The State Government has realized Net Present Value (NPV) of the forest land being diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 28.03.2008, 24.04.2008 and 09.05.2008 in Writ Petition (Civil) No. 202/1995 and the guidelines issued by this Ministry vide its letter No. 5-3/2007-FC dated 05.02.2009 in this regard. The NPV, if any becomes due in future, shall be realized by the State Government, if so determined, as per the final decision of the Hon'ble Supreme Court of India;
- vi. The User Agency shall pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India;
- vii. All compensatory levies, if any realized from the User Agency in future, under the project shall be transferred through e-challan to Ad-hoc Compensatory Afforestation Fund Management & Planning Agency (CAMPA) account pertaining to the State concerned;
- viii. The State Government shall ensure that use of the road by the local villagers is not constrained in any way by the proposed diversion in favour of the User Agency;
- ix. The boundary of the diverted forest land, shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- x. The user agency shall arrange to raise strip plantation on either side of the road and central verge at project cost, as per IRC specification, with maintenance of 7-10 years.
- xi. Wherever possible and technically feasible, the User Agency shall undertake afforestation measures along the roads within the area diverted under this approval, in consultation with the State Forest Department at the project cost.
- xii. The reclamation of quarry should be done under the supervision of the State Forest Department. The quarry shall be reclaimed and afforested completely before the project is closed.
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- xiv. The user agency will provide retaining walls, breast walls and drainage as per requirement to make the slope stable.
- xv. The User agency will undertake comprehensive soil conservation measures at the project cost in consultation with the State Forest Department, if required and scheme on the same shall be submitted to the Regional Office along with the compliance report;
- xvi. The designing of culverts/bridges, if any, over the natural streams/rivers/canals should be done in such a manner that it does not hamper the natural course of water, does not give rise to water-logging, and also does not hamper movement of wild animals.
- xvii. No labour camp shall be established on the forest land;
- xviii. The User Agency shall provide fuels preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- xix. The forest land shall not be used for any purpose other than that specified in the proposal;
- xx. The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
- xxi. The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;



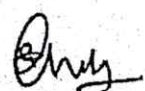
- xxii. No damage to the flora and fauna of the adjoining area shall be caused;
- xxiii. No felling of trees shall be undertaken in the area being diverted.
- xxiv. The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;
- xxv. The State Government shall ensure that rights have been settled, in accordance with the provisions of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006.
- xxvi. The user agency shall submit the six monthly self-compliance report in respect of the above conditions as on 31st July and 31st January to the State Government and to the concerned Regional Office of the Ministry regularly.
- xxvii. The State shall also monitor the compliance of conditions of the Stage-I approval and an annual report on the same may be submitted to this office as on 31st December every year.
- xxviii. Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife; and
- xxix. The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project.

Yours faithfully,


(Charan Jeet Singh)
Scientist 'C'

Copy to:

1. The PCCF, Government of Chhattisgarh, Raipur
2. The Nodal Officer FCA), O/o of the PCCF, Government of Chhattisgarh, Raipur.
3. The Director, ROHQ, MoEF&CC, Indira Paryavaran Bhawan, Aliganj, Jorbagh Road, New Delhi
4. User Agency.
5. Guard File.


(Charan Jeet Singh)
Scientist 'C'